

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: May 20, 2026

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Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) Those procedures and guidelines will be strictly enforced.

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#	Case Name	Tentative
1.	2023-1324110 Whitten vs. Peacock	Plaintiff Lara Whitten's Motion to Set Aside Dismissal is denied. Plaintiff moves under CCP section 473 for an order setting aside the dismissal entered on 1/8/26 (ROA 64) The record reflects this action was ordered to arbitration on or about 9/1/23, and these proceedings were stayed pending the arbitration. (ROA 25.) On 1/8/26, the parties appeared before the court for a status conference re: the arbitration proceedings. The Court granted Defendants' oral motion to dismiss these proceedings based upon the finding that the arbitration had been dismissed. (ROA 64) Relief under section 473 is not available, because the dismissal was not the result of "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Rather, these proceedings were dismissed in accordance with the rule that, if the arbitrator dismisses the arbitration, the court should "enforce[] it <i>by itself dismissing</i> the underlying civil action in accordance with the terms of [the Code]." (<i>Young v. Ross-Loos Medical Group, Inc.</i> (1982) 135 Cal.App.3d 669, 674.) As such, Plaintiff's motion for relief from dismissal is denied.

		The Clerk shall give notice of the ruling.
2.	2024-1432981 Le vs. Omni Invictus, LLC	The Court denies Plaintiff Lucy Pham Le’s Motion to vacate the May 28, 2025, Order granting Defendants Omni Invictus LLC, Sandor & Tompkins, Jennifer Tompkins, and Holly Monte’s Anti-SLAPP Motion. Plaintiff moves under Code of Civil Procedure §§ 473(b) and 473(d) on the grounds that the Court's order was based on a legal error and is “void or legally improper”. Section 473(b) allows the court in its discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect”. (CCP § 473.) Here, Plaintiff does not argue her mistake, inadvertence, surprise, or excusable neglect. This section is inapplicable. Section 473(d) provides that the court “may, on motion of either party after notice to the other party, set aside any void judgment or order.” Void judgments, e.g., where the court “lacked subject matter jurisdiction, lacked personal jurisdiction over the defendant, or granted relief the court had no power to grant,” are distinct from merely voidable judgments, e.g., where the court “exceeds its jurisdiction by acting contrary to its statutory duties.” Voidable judgments are not subject to CCP § 473(d). (<i>W. Bradley Elec., Inc. v. Mitchell Engineering</i> (2024) 100 CA5th 1, 13—settlement and judgment not authorized by client are only voidable (dicta).) Here, the 5/28/25 Order granting Defendants Omni Invictus LLC, Sandor & Tompkins, Jennifer Tompkins, and Holly Monte’s Special Motion to Strike (Anti-SLAPP) as to Plaintiff’s Complaint is not void. The Court has already denied Plaintiff’s Motion for reconsideration. (ROA 162.) The instant does not provide a proper legal basis for another round of reconsideration. Thus, the Motion is denied. Plaintiff is ordered to serve notice.
3.	2021-1178346 HONOR FINANCE, LLC vs.	The general demurrer by Defendant Spireon, Inc. (“Defendant”) to the second, fourth, fifth, and sixth causes of action alleged in the First Amended Complaint (“FAC”) filed by Plaintiffs Honor Finance, LLC (“Honor Finance”) and Honor Finance Holdings, LLC (“Honor

SPIREON, INC.	Holdings”) is overruled in part and sustained in part with leave to amend. As an initial matter, the Court notes Defendant’s proofs of service for the moving papers and reply once again did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiffs opposed the motion without objecting to service. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. <u>Second cause of action for aiding and abetting breaches of fiduciary duty, fourth cause of action for conspiracy, fifth cause of action for unlawful and unfair competition, and sixth cause of action for unjust enrichment alleged by Honor Holdings</u> “The directors of a foreign corporation transacting intrastate business are liable to the corporation, its shareholders, creditors, receiver, liquidator or trustee in bankruptcy for the making of unauthorized dividends, purchase of shares or distribution of assets or false certificates, reports or public notices or other violation of official duty according to any applicable laws of the state or place of incorporation or organization, whether committed or done in this state or elsewhere. Such liability may be enforced in the courts of this state.” (Corp. Code, § 2116). “Because only one state should have the authority to regulate the affairs of a corporation, the ‘internal affairs doctrine’ generally requires application of the law of the state of incorporation to any dispute regarding relations between the corporation and its shareholders or officers and directors. (<i>Grosset v. Wenaas</i> (2008) 42 Cal.4th 1100, 1106, fn. 2, 72 Cal.Rptr.3d 129, 175 P.3d 1184, citing <i>Edgar v. MITE Corp.</i> (1982) 457 U.S. 624, 645, 102 S.Ct. 2629, 73 L.Ed.2d 269.)” (<i>The Police Retirement System of St. Louis v. Page</i> (2018) 22 Cal.App.5th 336, 340.) Plaintiffs have not shown Delaware law applies to determine standing in an action between Honor Holdings and Defendant, who is not alleged to be a shareholder, officer, or director. The current action is pending in a California court. California law applies in determining whether Honor Holdings has standing to bring this action against Defendant. It is well-settled that a shareholder may not seek to recover on behalf of the corporation for injury done to the corporation by a defendant. (<i>See, Jones v. H. F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 107.) Where a plaintiff alleges the value of her stock has been diminished by defendants’ actions, but she does not contend that the diminished value reflects an injury to the corporation and resultant depreciation in the value of the stock, the gravamen of her cause of
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action is injury to herself and the other minority shareholders. (*Id.*) “If the injury is not incidental to an injury to the corporation, an individual cause of action exists.” (*Id.*)

A shareholder “does not have an ownership interest in corporate profits.” (*Id.*, at 232.) A shareholder’s “out-of-pocket investment in the corporation is not the same as lost future corporate profits.” (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 212, 232.) A shareholder may be able to recover the loss in value of the shareholder’s shares or diminution of the shareholder’s ownership interest in a corporation, but only if such losses were not part of an injury to the whole body of the corporation’s stock or merely incidental to the alleged harm suffered by the corporation and all its shareholders. (*Id.*, at 233.)

Plaintiffs allege Honor Holdings is the sole member and owner of Honor Finance and Defendant caused Honor Finance to fail, resulting in Finance Holdings losing a total of \$25 million in equity investments and debt investments in Honor Finance. (FAC, ¶¶ 5 and 29-31.) Plaintiffs allege Honor Holdings would not have made these investments if Honor Holdings had known about this fraudulent scheme. (*Id.*, ¶ 31.) Plaintiffs also allege Honor Holdings would not have made these investments if DiMeo had not concealed this scheme with Defendant’s assistance. (*Id.*) Plaintiffs have not alleged sufficient facts to show Honor Holdings has standing to bring these causes of action against Defendant. Accordingly, the demurrer is sustained with 15 days leave to amend.

Fifth cause of action for unlawful and unfair competition

Business & Professions Code section 17200 prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.” Under the unlawful prong, a violation of law may be actionable as unfair competition under Business & Professions Code section 17200. (*Lueras v. BAC Home Loans Servicing, LP*, 221 Cal.App.4th 49, 81.) “An unfair business practice occurs when that practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers...An unfair business practice also means the public policy which is a predicate to the action must be tethered to specific constitutional, statutory or regulatory provisions.” (*Id.* [internal citations omitted].) A fraudulent practice “require[s] only a showing that members of the public are likely to be deceived and can be shown even without allegations of actual deception, reasonable reliance and damage.” (*Id.* [internal citations omitted].)

“The UCL was enacted ‘to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services.’” (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 135, citing *Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949.) In circumstances like in *Linear Technology*, “where a UCL action is based on contracts not involving either the public in general or individual consumers who are parties to the contract, a corporate plaintiff may not rely on the UCL for the relief it seeks.” (*Linear Technology Corp. v. Applied Materials, Inc.*, 152 Cal.App.4th at 135.)

To establish standing, Plaintiff must allege facts that “(1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., *economic injury*, and (2) show that that economic injury was the result of, i.e., *caused by*, the unfair business practice or false advertising that is the gravamen of the claim.” (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 322.)

Plaintiffs allege “DiMeo insisted that every borrower install such a GPS device on a financed vehicle as part of the illicit scheme, which directly benefitted Spireon by increasing the volume of GPS devices sold. Further, on information and belief, Spireon was aware that DiMeo’s scheme requiring all Company-financed vehicles to have GPS devices installed was atypical.” (FAC, ¶ 16.) Plaintiffs also allege “unnecessary GPS equipment was being purchased” by Honor Finance and consumers, and the costs paid by consumers and Honor Finance were higher because of the higher charges for the equipment. (*Id.*, ¶ 69.) Contrary to Defendant’s contention, this cause of action is not solely a contractual dispute between the two parties. Plaintiffs alleged Defendant aided and abetted, and conspired with, DiMeo to defraud Plaintiffs. Plaintiffs did not dispute whether sufficient facts were alleged to support these causes of action against Honor Finance. Demurrer to this cause of action as to Honor Finance is overruled.

Sixth cause of action for unjust enrichment

“As the forum state, California will apply its own law ‘unless a party litigant timely invokes the law of a foreign state.’” (*Chen v. Los Angeles Truck Centers, LLC* (2019) 7 Cal.5th 862, 867.) Plaintiffs commenced this action in 2021. In Plaintiffs’ Complaint, Plaintiffs cited to a California case to support this cause of action. (Complaint, ¶ 53.) Plaintiffs did not attempt to invoke Illinois law on this cause of action until Plaintiffs filed their opposition to Defendant’s Motion for Judgment on the Pleadings on June 25, 2025. Even considering the stay in the action, Plaintiffs have not shown they timely invoked Illinois law on this cause of action. In

addition, even if the Court considered whether Illinois law should apply, Plaintiffs did not show Illinois law should apply.

“To determine which jurisdiction’s law will govern, a trial court applies the governmental interest test, which sets out a three-step inquiry: ‘First, the court determines whether the relevant law of each of the potentially affected jurisdictions with regard to the particular issue in question is the same or different. Second, if there is a difference, the court examines each jurisdiction’s interest in the application of its own law under the circumstances of the particular case to determine whether a true conflict exists. Third, if the court finds that there is a true conflict, it carefully evaluates and compares the nature and strength of the interest of each jurisdiction in the application of its own law “to determine which state’s interest would be more impaired if its policy were subordinated to the policy of the other state” [citation], and then ultimately applies “the law of the state whose interest would be the more impaired if its law were not applied.”’” (*Chen v. Los Angeles Truck Centers, LLC*, 7 Cal.5th at 867–868.)

“[T]he mere fact that two states have differing laws with regard to a general subject area is not a sufficient basis on which to conclude that there is an actual conflict of law that would preclude the forum state from applying its own law.” (*People ex rel. DuFauchard v. U.S. Financial Management, Inc.* (2009) 169 Cal.App.4th 1502, 1520.)

Plaintiff contends Illinois recognizes unjust enrichment as an independent cause of action, citing to *O’Malley v. Adams*, 2023 IL App (5th) 210381. (Opposition, ROA No. 375, 19:14-16.) The Illinois Court did recognize that the Illinois Supreme Court “has recognized unjust enrichment as an independent cause of action.” (*O’Malley as Trustee Under Trust Agreement Dated January 1, 2006 v. Adams as Trustee of Almyra M. Prather Revocable Trust Agreement dated December 15, 1967* (Ill. App. Ct. 2023) 227 N.E.3d 800, 815.) However, the Court also note that “the only ‘substantive basis for the claim’ was restitution to prevent unjust enrichment.” (*Id.*) This does not necessarily differ from California.

In California, there is no standalone cause of action for unjust enrichment. The Court of Appeal for the First District, Second Division, has held that “[u]njust enrichment is not a cause of action, however, or even a remedy, but rather a general principle, underlying various legal doctrines and remedies. It is synonymous with restitution.... Unjust enrichment has also been characterized as describing the result of a failure to make restitution....” (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387.) A party to an express contract can assert a claim for restitution based on unjust enrichment by alleging in that cause of

		action that the express contract is void (because it was procured by fraud or is unenforceable or ineffective for some reason) or was rescinded. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231.) Under the law of restitution, “an individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another’s expense. Benefit means any type of advantage.... The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two individuals, it is unjust for the person to retain it.” (<i>First Nationwide Savings v. Perry</i> (1992) 11 Cal.App.4th 1657, 1662-1663.) Plaintiffs have not shown Illinois’ interest in applying Illinois law under the circumstances of this case or how Illinois’ interest may be impaired if Illinois law was not applied. The Court declines to consider this cause of action under Illinois law. Even if the Court considered this a claim for restitution based on unjust enrichment, Plaintiffs have not alleged sufficient facts to state this cause of action. Accordingly, the demurrer is sustained with 15 days leave to amend. Defendant shall give notice.
4.	2025-1491645 Salazar vs. General Motors, LLC	The Court sustains Defendant General Motors LLC’s Demurrer to the fourth and fifth causes of action for breach of the implied warranty and fraud, respectively, in Plaintiff David Salazar’s First Amended Complaint (FAC). Plaintiff has 15 days leave to amend the fraud claim only. <u>Facts</u> The FAC alleges that on February 17, 2019, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Silverado 1500 (i.e. “Subject Vehicle.”) (FAC, ¶ 6.) The Plaintiff “purchased the Vehicle from Defendant GM’s authorized retail dealership Chevrolet of Montebello” (<i>Id.</i> at ¶ 8.) The FAC alleges that “Plaintiff discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them. However, Defendant failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act.” (<i>Id.</i> at ¶ 31.) The Complaint was filed on 6/23/25. <u>4th Cause of Action for Breach of Implied Warranty</u> The four-year statute of limitations articulated in Commercial Code section 2725 applies to claims brought pursuant to the Song-Beverly

Act. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 214-215.) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered” (Com. Code, § 2725, subd. (2).)

Similarly, “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years.” (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 494.)

Per the FAC, Plaintiff entered into the relevant warranty contract on **2/17/19**. (FAC, ¶6.) Although not explicitly stated, the reasonable implication is that the vehicle was delivered to Plaintiff, on that same date. On demurrer, the Court “assume[s] the truth of all properly pleaded facts, as well as all facts that may be implied or reasonably inferred from those expressly alleged....” (*Sonoma Luxury Resort LLC v. California Regional Water Quality Control Bd.* (2023) 96 Cal.App.5th 935, 940.) The instant action was not commenced until **6/23/25**, over 4 years after delivery of the vehicle.

But Plaintiff argues that delayed discovery is permitted and, in that vein, alleges that “Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them.” (FAC, ¶31.)

Under section 2725, the general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach), unless the “warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance”; If the exception applies, the accrual date is the time the breach is or should have been discovered. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal. App. 4th 116, 129, electrical connector manufacturer’s warranty that connections would work for 50,000 cycles did not fall within the future performance exception to limitation period for claims alleging breach of warranty, and thus, limitations period began to run when tender of the goods was made; the promise about the mechanical life of the spring probe connectors did not specify a date or time in the future, nor did the 50,000 cycle warranty pertain to a time period that could be determined by reference to an external source quoting Cal. Com. Code, § 2725(2).)

The *Cardinal Health* court explained that, although the scope of the “future performance” exception has been the subject of numerous,

and sometimes conflicting, decisions throughout the country, "the majority view is that the exception must be narrowly construed, and that it applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (*Cardinal Health 301, Inc., supra*, at p. 130.)

But recognizing that in order to prove a breach of the implied warranty, the purchaser is required to show that the defect existed at the time the product was sold or delivered, the court in *Mexia v. Rinker Boat Co., Inc., infra*, opined that, "[i]n effect, therefore, there is no 'duration' of the implied warranty under the Uniform Commercial Code in any meaningful sense; the product is either merchantable or not (and a breach of the implied warranty occurs or not) only at the time of delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304, citing Cal. Com. Code, § 2725(2)).

Here, Plaintiff has alleged that the alleged defects existed when the car was delivered and manifested during the express warranty period. (FAC, ¶¶18, 72-73.) Recognizing that in order to prove a breach of the implied warranty, the purchaser is required to show that the defect existed at the time the product was sold or delivered, the court in *Mexia v. Rinker Boat Co., Inc.*, opined that, "[i]n effect, therefore, there is no 'duration' of the implied warranty under the Uniform Commercial Code in any meaningful sense; the product is either merchantable or not (and a breach of the implied warranty occurs or not) only at the time of delivery." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1304, (citing 1 White & Summers, Uniform Commercial Code (5th ed.2006), § 9-12, pp. 657-658.)

Thus, based on the allegations, it appears that the statute of limitations has run. The Demurrer is therefore sustained without leave to amend.

Fifth Cause of Action for Fraudulent Inducement/Concealment

The limitations period for Plaintiffs' fraud cause of action is three years. (Code Civ. Proc., § 338, subdivision (d).) "The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Ibid.)

"California law recognizes a general, rebuttable presumption, that plaintiffs have 'knowledge of the wrongful cause of an injury.' " (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (Grisham).) The delayed discovery rule rebuts that presumption and

tolls the statute of limitations. (Ibid.; See also *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803.)

“In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule **must specifically plead facts** to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Likewise, “[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must **specifically plead facts** which, if proved, would support the theory.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) “A plaintiff who fails to sufficiently plead such facts normally should be permitted to amend his or her complaint to do so.” (Ibid.)

Per the FAC, Plaintiff entered into the relevant warranty contract on **2/17/19**. (FAC, ¶6.) The instant action was not commenced until **6/23/25**, over 3 years later. While Plaintiff attempts to allege delayed discovery, the FAC is devoid of the required facts. In order for the statute of limitations to be tolled for delayed discovery in a fraudulent concealment action, the “complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it. . .” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900.)

Further, the Court finds that the fraud claim is not pled with specificity. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Fraud, including concealment, must be pled with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) General and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal

		construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect for allegations of fraud. (<i>Id.</i>) However, less specificity is required of fraud claims when a defendant must necessarily have more information or knowledge concerning the facts of the controversy than a plaintiff. (<i>Alfaro v. Community Housing System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) Thus, the Demurrer to the fifth cause of action for fraud is sustained with leave to amend. Defendant is ordered to serve notice.
5.	2025-1517586 Je Beaute, Inc. vs. Guo	The Court erroneously referred to this matter as having been continued from 5/13 for “lack of an interpreter.” But subsequent to posting, the Court was presented with supplemental briefing (ROAs 177 and 179) which refreshed the Court’s recollection as to the reason it continued the original motion to expunge lis pendens. Based on the supplemental briefing, the Court is satisfied both that the matter concerns real property, and as to the validity of the claim. Accordingly, the motion to expunge lis pendens is DENIED.
6.	2022-1262809 Haddad vs. Ismail	The Court grants Defendants Wissam Ismail and Omer Ismail’s Motion to vacate the 7/20/23 default and the 10/26/23 Judgment entered against them on Plaintiff Wasfi Haddad’s Complaint for breach of contract. <u>Evidentiary Objections</u> The Court overrules Defendants’ objection nos. 1-5. <u>Legal Standard</u> Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. (CCP § 418.10(a)(1); <i>see Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371—”[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void” (internal quotes and citation omitted).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 CA4th 403, 413; <i>see Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.)

There is no time limit to bring a motion for relief from a default judgment in the original action on the ground a judgment, though valid on its face, is void for lack of proper service—cases to the contrary have been disapproved. (CCP § 473(d); *California Capital Insurance Company v. Hoehn* (2024) 17 Cal. 5th 207, 225, disapproving *Trackman v. Kenney* (2010) 187 Cal. App. 4th 175.)

Some courts require defendants seeking to vacate a default judgment to act with reasonable diligence after learning of that judgment. (See, e.g., *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 37 [“diligence is measured from when a party discovers the default or default judgment”].) Other courts have cast doubt on the imposition of such a requirement. (See *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1229, [“‘[w]hat is initially void is ever void and life may not be breathed into it by lapse of time’”; *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225, filing the motion within 3 months of learning of the judgment is per-se reasonable.)

Merits

It is Plaintiff’s burden to show proper service. Plaintiff relies on the Proof of Service filed on 7/18/23 at ROA 19 and 21. They each contain declarations of the process server Ali M. Said. He testifies that he personally served both Defendants with the Summons and Complaint on May 24, 2023, at 1:17 p.m. and May 27, 2023, at 9:22 a.m. at 5 Estates Drive, Villa Park, California 92861. (See Said Decls. attached to the proofs of service.)

As to Defendant Wissam Ismail, documentary evidence establishes that he resided and worked in Dubai, United Arab Emirates, throughout May 2023. His Emirates NBD bank statement reflects numerous in-person transactions in Dubai during that month, including on May 24, 2023—the very date the Proof of Service claims he was personally served in Villa Park. Those transactions include purchases at Starbucks, Majid Al Futtaim Hypermarket, and Royal Dining Catering Services—all of which required his physical presence in Dubai. (Wissam Ismail Decl., ¶¶ 6–8, 10 & Ex. B.) Mr. Ismail also held a residential lease at Central Park Towers in the Dubai International Financial Centre, commencing January 25, 2023, and received regular salary deposits from his Dubai employer, KOI Technologies FZCO. (Wissam Ismail Decl., ¶¶ 4 5, 9 & Exs. A–B.)

As to Defendant Omer Ismail, official Jordanian government border records establish that Omer Ismail has been continuously present in Jordan since June 11, 2018. A Proof of Entry/Exit Form issued by the Hashemite Kingdom of Jordan, Public Security Directorate, Residency and Borders Department, dated December 7, 2025,

confirms that: (1) Mr. Omer Ismail's last recorded entry into Jordan was on June 11, 2018, arriving from Britain via Queen Alia International Airport; (2) no departures from Jordan have been recorded since that date; and (3) Mr. Omer Ismail's current status is "Inside the country." (Omer Ismail Decl., ¶¶ 6–9; Alazzazi Decl., ¶¶ 2–4 & Ex. B [certified translation].)

Souad Kassis, the estranged spouse of Wissam Ismail, resided at 5 Estates Drive in May 2023. She confirms that no process server came to the property on May 27, 2023. (Kassis Decl., ¶¶ 2, 4.) No one showed up at the door that day to serve papers. The encounter described in the Proof of Service did not happen. (Id., ¶ 4.) Ms. Kassis further confirms that Omer Ismail was not present at the property on May 27, 2023, and to her knowledge has never been present at that address. (Id., ¶ 5.)

The Court therefore finds that Plaintiff has not met his burden to show personal service was actually accomplished.

Plaintiff argues in opposition that Defendants did not act with diligence because they knew Plaintiff sued them. But Plaintiff's evidence does not show actual knowledge of the lawsuit. But even if it did show actual knowledge in April of 2023, this is not a substitute for proper service. When service is improper then the issue of action notice of the lawsuit is irrelevant. Actual notice of the action alone is not a substitute for proper service and is not sufficient to confer jurisdiction. "[N]o California appellate court has gone so far as to uphold a service of process solely on the ground the defendant received actual notice when there has been a complete failure to comply with the statutory requirements for service." (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392, citing *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 414.)

Further, Defendants were diligent in filing this Motion after learning of the default judgment. On September 12, 2025, court officers arrived at Omer Ismail's property in Jordan to assess its value for auction. Both Defendants learned of the California judgment that day. (Wissam Ismail Decl., ¶ 12; Omer Ismail Decl., ¶ 10.) Omer Ismail immediately retained Jordanian counsel, Ali Al-Hasani, Esq., who filed an appeal with the Amman Court of Appeal on September 23, 2025. Enforcement of the judgment is now stayed. (Omer Ismail Decl., ¶ 11.) Defendants retained California counsel on November 18, 2025, and now bring this motion at the earliest opportunity. (*Id.*)

Thus, the Motion is granted.

		But the issue remains whether Defendants have now appeared and must respond to the Complaint. Parties are ordered to come prepared to discuss this issue with the Court.
7.	2024-1394067 Sanchez vs. Jaguar Land Rover North America, LLC	The motion by Plaintiff Oscar Sanchez (“Plaintiff”) for an order awarding attorneys’ fees and costs pursuant to Civil Code section 1794, subdivision (d) is granted. On February 18, 2026, the hearing on this motion was continued to allow Plaintiff to file Plaintiff’s supporting declaration because it appeared Plaintiff inadvertently filed Plaintiff’s memorandum of costs twice instead of the supporting declaration. Plaintiff filed the supporting declaration that was served on July 31, 2025, and provided notice of the continued hearing to Defendants Jaguar Land Rover North America, LLC and Anaheim Hills Jaguar Land Rover, Inc., dba Jaguar Land Rover Anaheim Hills (collectively, “Defendants”). Defendants’ unopposed request for the Court to take judicial notice of the register of actions and the notice of settlement are denied because Defendants did not make the request “in a separate document.” (Cal. Rules of Ct., Rule 3.1113(l).) In addition, it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.) The Court exercises its discretion to consider Plaintiff’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Civil Code section 1794, subdivision (d) provides as follows: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” There is no dispute that Plaintiff is the prevailing party and entitled to recover Plaintiff’s costs, including fees, pursuant to section 1794, subdivision (d). The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th

1084, 1095.) The Court may make its determination of the value of the services rendered without the necessity of expert testimony. (*Id.* at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (*Id.*)

The party seeking an award of fees is not necessarily entitled to compensation for the value of attorney services according to his own notion or to the full extent claimed by him. (*Levy v. Toyota Motors Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815-816.) The moving party instead has the burden of showing that the fees sought were allowable, reasonably necessary to the conduct of the litigation, and reasonable in amount. (*Id.*, at 816.)

Courts apply a lodestar method to calculate reasonable attorneys' fees. (*Meister v. U.C. Regents* (1998) 67 Cal.App.4th 437, 448-449.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (*Serrano v. Priest* (1977) 20 Cal.3d 25.) A reasonable fee is determined in the trial court's discretion. (*PLCM Group*, 22 Cal.4th at 1095.) To determine reasonable attorneys' fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.)

McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 703 provides:

"The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.... 'It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not

reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.’ ... [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818, 50 Cal.Rptr.3d 731.)

The fees incurred in preparing a motion for fees are properly includable in the award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133 [“an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee”].)
(*Id.*)

A reasonable hourly rate reflects the skill and experience of the lawyer, including any relevant areas of particular expertise, and the nature of the work performed. (*Hensley v. Eckerhart* (1983) 461 U.S. 424, 433-434.)

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. (*PLCM Group*, 22 Cal.4th at 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (*Id.* [emphasis added].)

“Affidavits of the Plaintiff’s attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the Plaintiff’s attorneys are satisfactory evidence of the prevailing market rate.” (*United Steelworkers of America v. Phelps Dodge Corp.* (9th Cir. 1990) 896 F.2d 403, 407.)

Plaintiff retained counsel in December 2023, and the case settled around July 2025. In less than two years’ time, Plaintiff’s case utilized four lawyers, two law clerks, and a paralegal. Based on the evidence submitted, the Court finds the following hourly rates are reasonable:

- 1) Attorney Saeedian - \$550 (Saeedian Decl., ¶¶ 2-3.)
- 2) Attorney Urner - \$350 (Saeedian Decl., ¶¶ 4.)
- 3) Attorney Perude - \$550 (Saeedian Decl., ¶ 6.)

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| | <p>4) Attorney Acosta - \$375 for services performed after July 2024 and \$300 for services performed before July 2024 (Saeedian Decl., ¶ 5.)</p> <p>5) Law Clerk Kowalczyk - \$150 (Saeedian Decl., ¶ 7.)</p> <p>6) Law Clerk Ghazarian - \$150 (Saeedian Decl., ¶ 8.)</p> <p>7) Paralegal Zazueta - \$125 (Saeedian Decl., ¶ 8.)</p> <p>In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>)</p> <p>Additionally, moving party’s counsel’s verified time records should be “entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.)</p> <p>However, the Court “may not rubber stamp a request for attorney fees, but must determine the number of hours <i>reasonably</i> expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271.)</p> <p>Plaintiff submitted Plaintiff’s attorneys’ time entries to support Plaintiff’s request, which Plaintiff’s counsel contends he reviewed for accuracy and to remove redundancy billing and non-essential clerical items. (Saeedian Decl., ¶¶ 14 and 25, Exhibit A.)</p> <p>Defendants contend the total amount billed for such a straightforward case that had little litigation activity is unreasonable. Defendants contend Defendants incurred less than \$15,000 in fees and request the Court award no more than \$15,000 to Plaintiff. However, Defendants only directs the Court’s attention to two tasks – the drafting of the complaint and the drafting of this motion. In addition, Plaintiff filed discovery motions, which Defendants did not oppose.</p> <p>After reviewing the time entries at issue, the Court contrary to Defendants’ contention, Plaintiff only billed 0.4 hours to draft the complaint. (Saeedian Decl., Exhibit A, page 1 [at page 13 of PDF].) This time is more than reasonable. The time billed for preparing this motion, approximately 3.6 hours, is reasonable. The estimated time for reviewing the opposition and preparing the reply should be revised based on the reply declaration. The time should be reduced by 0.8 hours based on the newly submitted evidence. In addition, Plaintiff does not need 1 hour to prepare for the hearing. Assuming</p> |
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		Plaintiff will appear by Court Call, 1 hour to prepare and attend the hearing is more than sufficient. After reviewing the time entries at issue, the recommendation is to reduce the following: 1) Client intake fees – these services (drafting the attorney client agreement, communications regarding the agreement, etc.) are a part of doing business and should not be passed on to Defendants. 2) One hour to prepare for the hearing on this motion Based on the Court’s review of the papers submitted in support and in opposition to this motion, and the procedural history of this case, the Court finds that Plaintiff reasonably incurred \$36,572.50 in attorneys’ fees. Defendants contend Plaintiff’s requested costs for “Other” costs should be reduced. However, Defendants did not file a motion to tax or strike costs. “Delay (or failure) to challenge a costs bill waives any objection to the costs claimed thereon.” (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 290.) In addition, Defendants’ request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendants’ request is denied. Plaintiff’s motion for fees is granted. Plaintiff is awarded \$36,572.50 in attorneys’ fees and \$3,010.89 in costs. Plaintiff shall give notice.
8.	2025-1494177 The Springs Condominium vs. Beavis	Plaintiff The Springs Condominium’s Motion for Publication of Summons and Complaint is denied. Plaintiff moves, under CCP section 415.50, for an order allowing it to serve process, by publication, against a defendant that has been named in the Complaint as “Andrew” and “Trespassing Defendant.” The Court finds this designation of the defendant is not sufficient to permit service by publication. Before allowing a plaintiff to resort to service by publication, the courts necessarily require the plaintiff to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice.” (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, fn. 5 [noting that “number of honest attempts to learn defendant’s whereabouts or his address” should be made, such as by “inquiry of relatives” and “investigation of appropriate city and telephone directories,” and other “likely sources of information”].) “If a defendant's address is ascertainable, a

		method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort.” (<i>Ibid.</i>) “[T]he traditional rule is that the requirements for service of summons by publication must be <i>strictly</i> complied with.” (<i>County of Riverside v. Superior Court</i> (1997) 54 Cal.App.4th 443, 450, emphasis in original.) If the requirements for publication are not met, the service is ineffective and the default judgment entered thereon is void. (<i>Olvera v. Olvera</i> (1991) 232 Cal.App.3d 32, 41.) The testimony from Plaintiff’s process server shows why it may be difficult for Plaintiff to serve the “Trespassing Defendant.” Nevertheless, publication would not be an appropriate method of service, because Plaintiff is unable to identify the defendant by his full name and only refers to him as “Andrew” or “Trespassing Defendant.” The fact that a broader investigation may not be possible does not mean it can be excused in order to allow service by publication. It is understood that publication rarely results in actual notice, but publication without so much as a defendant’s full name seems virtually worthless. For the foregoing reasons the motion to serve “Trespassing Defendant” by publication is denied. The Court notes, if Plaintiff is unable to accomplish personal service, relief may be available under CCP section 413.30. Under section 413.30, if a plaintiff who, “despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter,” the court may “direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.” Non-traditional methods for serving process, such as mail and posting, or electronic service, may be available under this section. (See, e.g., <i>Cohen v. Board of Supervisors</i> (1971) 20 Cal.App.3d 236, 239; <i>Bush v. Writers Guild of America, West, Inc.</i> (C.D. Cal., Apr. 20, 2026, No. 2:25-CV-11038-RGK-AGR) 2026 WL 1122205, at *3.) The Clerk shall give notice of the ruling.
10.	2025-1487435 Davis vs. Baron	Defendant Brian Baron’s demurrer to plaintiff Kimberly Ann Davis’ complaint is moot in light of the order granting his special motion to strike her complaint. [ROA ##34, 129.] Defendant Tustin Police Department’s demurrer to Plaintiff’s . complaint is sustained with 21 days leave to amend. [ROA #13.]

Defendant County of Orange's demurrer to Plaintiff's complaint is sustained with 21 days leave to amend. [ROA #17.]

Defendants Esther Solis and Citalli Gonzales' demurrer Plaintiff's complaint is sustained. The court will hear from Plaintiff and Defendants' counsel as to whether Plaintiff should be given leave to amend. [ROA #21.]

Legal Standard on Demurrer

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the "four corners" as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." *Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).

Brian Baron Demurrer

Brian Baron filed a special motion to strike at the same time he filed his demurrer. The special motion to strike was heard first and was granted. [5/6/26 Minute Order (ROA #129).]

His demurrer is therefore moot.

Tustin Police Dept. Demurrer

The Tort Claims Act provides that “[a] public entity may ... be sued,” but that with specified exceptions “no suit for money or damages may be brought against a public entity ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board....” Govt. Code §§ 945, 945.4; cf. *id.* §§ 905, 905.2, 910 et seq. Where required, the claim must be filed within six months after accrual of the cause of action; leave to file a claim after the six-month deadline must be sought within one year after accrual of the cause of action. Govt. Code, §§ 911.2, 911.4. *See also Briggs v. Lawrence* (1991) 230 Cal.App.3d 605, 612 (discussing law).

Plaintiff does not allege in her complaint that she timely presented a claim to the City of Tustin for the acts of the Tustin Police Department alleged in her complaint. *Shirk v. Vista Unified School Dist.* (2007) 42 Cal.4th 201, 209 (finding timely presentment must be alleged to state claim).

Plaintiff contends she seeks nonmonetary damages so failure to comply with the Government Tort Claims Act does not bar her entire claim(s) against Defendant Tustin Police Department. But Plaintiff’s prayer for relief does not seek any nonmonetary relief against the Tustin Police Department.

Plaintiff also notes that a 42 U.S.C. section 1983 Civil Rights claim is not subject to the Government Tort Claims act. She is correct. *Williams v. Horvath* (1976) 16 Cal.3d 834, 842 (“[T]he California remedy of recourse to the Tort Claims Act need not be first sought before a plaintiff is free to invoke the Civil Rights Act.”).

Plaintiff has not alleged a section 1983 claim against the Tustin Police Department, however.

There are two elements to stating a cause of action under section 1983. “The plaintiff must first show a deprivation of a constitutional right, and secondly, must show that the defendant was acting under color of state law in depriving the plaintiff of this right. (13B Wright, Miller & Cooper, *Federal Practice and Procedure* (2d ed., 1984) § 3573.2, p. 203.)” *Hayssen v. Board of Zoning Adjustments* (1985) 171 Cal.App.3d 400, 409.

Plaintiff has not alleged what federal right she was deprived of or what conduct by the Tustin Police Department deprived her of such

	right. “As to the first element, section 1983 is not a source of substantive rights but provides a forum for a remedy only. A substantive right must be found in the Constitution or in federal law.” <i>Id.</i> Indeed, in the absence of allegations of specific conduct by a Tustin police officer, Plaintiff has not stated any cause of action against the Tustin Police Department. Plaintiff alleges, according to statements in court records, the Tustin Police Department described her as delusional. [Complaint at 4:7.] Other than that, the crux of Plaintiff’s complaint appears to be that “[t]he listed individuals and organizations allowed my son’s father to alienate me and my family from him, causing me and my family significant emotional distress.” [<i>Id.</i> at 4:15-16.] This is insufficient to state any of the claims listed by Plaintiff: Violation of Civil Rights (42 U.S.C. § 1983) Discrimination Negligence Fraud Upon the Court (CA Penal Code § 115) Legalized Kidnapping Emotional Distress Corruption and Official Misconduct Child Endangerment /Abuse [Complaint at 1.] Accordingly, the Tustin Police Department’s demurrer to Plaintiff’s complaint is sustained. County of Orange Demurrer In its demurrer, the County of Orange acknowledges Plaintiff submitted a claim on 8/12/24. [Demurrer MPA (ROA #17) at 5:16-17.] The County demurs primarily on the ground that Plaintiff has not alleged sufficient facts of acts by the County to state a claim and that what she has alleged is uncertain. This demurrer is sustained. The County also demurs on the ground that it is immune for discretionary actions. Govt. Code §820.2, but this is an issue not best resolved on demurrer. <i>Lopez v. Southern Cal. Rapid Transit Dist.</i> (1985) 40 Cal.3d 780, 794. Solis/Gonzales Demurrer These defendants are investigator/mediator and a mediator with the family court services of the Orange County Superior Court. They
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are identified in Plaintiff's complaint as court officials. [Complaint at 2:11-12.]

Plaintiff does not allege specific acts by either of them but alleges "[c]ourt officials have been complicit in this injustice, displaying a disturbing comfort in perpetuating blatant falsehoods. Their actions, combined with a lack of accountability, have directly placed my son in harm's way." [Complaint at 7:2-4.]

In addition to grounds for demurrer discussed above, these moving defendant also assert immunity. As court officials, they are cloaked in quasi-judicial immunity.

The doctrine of judicial immunity "bars civil actions against judges for acts performed in the exercise of their judicial functions"; it applies "to all judicial determinations, including those rendered in excess of the judge's jurisdiction, no matter how erroneous or even malicious or corrupt they may be." *Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851. The purpose of the doctrine is two-fold: it protects the finality of judgments and discourages inappropriate collateral attacks and also protects judicial independence by "insulating judges from vexatious actions prosecuted by disgruntled litigants." *Id.* at p. 852. The protection "must be absolute"; the effect of which "is that the action against the judicial officer must be dismissed." *Id.*

Under the concept of "quasi-judicial immunity," California courts extended absolute judicial immunity to persons other than judges if those persons act in a judicial or quasi-judicial capacity. *Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 852–853. And in *Howard v. Drapkin*, the court expressly extended quasi-judicial immunity to third-parties for their conduct in performing dispute resolution services which are connected to the judicial process and involve either (1) the making of binding decisions, (2) the making of findings or recommendations to the court or (3) the arbitration, mediation, conciliation, evaluation or other similar resolution of pending disputes. 222 Cal.App.3d at 860. *See also Bergeron v. Boyd* (2014) 223 Cal.App.4th 877, 880 (finding quasi judicial immunity protected psychologist/ family court child custody evaluator).

Nor would Plaintiff's section 1983 claim for damages, had she sufficiently alleged one against these defendants, overcome Defendants' immunity. "Title 42 U.S.C. § 1983 (1982) was not intended to abolish the doctrine of judicial immunity. Judicial immunity applies however erroneous the act may have been, and however injurious in its consequences it may have proved to the plaintiff." *Houghton v. Osborne* (9th Cir. 1987) 834 F.2d 745, 750 (citations and internal quote marks omitted). As to injunctive relief,

	Plaintiff's claim would also fail. Section 1983 limits redress against judicial officers to instances where either the conduct to be enjoined was the subject of an earlier declaratory relief judgment or such earlier relief was not available to the litigants. Litigants seeking to use Section 1983 to enjoin the conduct of a judicial officer must either first obtain a declaratory judgment and then enforce the judgment; or show that under the particular circumstances presented, such declaratory relief was not available. In the absence of those circumstances, judicial officers are immune even from prospective injunctive relief available under <i>Pulliam</i>. See <i>Roth v. King</i> (D.C. Cir. 2006) 449 F.3d 1272, 1286–1287. For all the reasons discussed, the Solis/Gonzales demurrer is sustained.
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